REPUBLIC OF THE PHILIPPINES
CITY OF DAVAO
OFFICE OF THE SANGGUNIANG PANLUNGSOD

Ordinance No. 0270-23

THE COMPREHENSIVE SPEED LIMIT ORDINANCE OF DAVAO CITY

Be it ordained by the Sangguniang Panlungsod of Davao City, in session assembled, that:

SECTION 1. TITLE. — This Ordinance shall be known as the "SPEED LIMIT ORDINANCE OF DAVAO CITY".

SECTION 2. DECLARATION OF POLICY. — Under Section 16 of General Welfare Clause, of Republic Act No. 7150 or the Local Government Code, Local Government Units (LGUs) are authorized to exercise the powers necessary, appropriate, or incidental to its efficient and effective governance and those which are essential to the promotion of general welfare. Pursuant thereto, it is the policy of the City of Davao to promote safety and accessibility in public roads for drivers and pedestrians alike. This Ordinance is enacted to safeguard all road users, regulate traffic on all streets, bridges, and other public places within the territorial jurisdiction of Davao City, and to promote public health, safety, convenience, maintenance of peace and order, and promote the general prosperity of its inhabitants.

SECTION 3. COVERAGE. — This Ordinance shall apply to all types of motor vehicles driven within the territorial jurisdiction of Davao City and the drivers, operators, and registered owners thereof.

SECTION 4. INTERPRETATION. — Words and phrases not defined in this Ordinance may be given their plain or customary meanings, unless the context requires otherwise. All words, phrases, and provisions shall be interpreted in a manner that is consistent with the purpose and spirit of this Ordinance.

SECTION 5. DEFINITION OF TERMS. — When used in this Ordinance, each of the following words and phrases shall be construed to mean as follows:

(a) Authorized Personnel refers to any individual employed by the Local Government of Davao City, through the City Transport and Traffic Management Office (CTTMO), being authorized by the latter to implement the Local Traffic Laws of Davao City;

(b) City Streets shall refer to roads that connect to the National and Provincial Road, and roads that provide inter-barangay connections to major City Infrastructure without traversing Provincial roads, within the City of Davao, not otherwise designated as National Road, Provincial Roads, Barangay Roads, and Crowded Streets;

(c) City Traffic Citation Ticket (CTCT) or Traffic Citation Ticket (TCT) refers to a ticket or notice upon which a CTTMO authorized personnel or its agent shall record an occurrence involving one or more vehicle traffic law violations committed by the driver or person cited and the same shall be issued to the latter;

(d) Crowded Streets shall refer to streets with heavy pedestrian traffic, including all streets within one (1) kilometer radius of the perimeter of schools, public transportation terminals, markets, government buildings, churches and places of worship, recreational places, facilities frequented by the youth, parks, shopping malls, movie houses, hotels, restaurants, and other public places as may be determined by the City. In case of linear strips

of crowded areas, the reckoning point for the five hundred (500) meter radius shall be the first and the last crowded public place;

(e) Deputized Personnel shall mean an authorized officer trained and deputized by the Land Transportation Office (LTO) to enforce the provisions of Republic Act (RA) No. 4136 and other pertinent transportation laws, rules and regulations;

(f) Driver shall mean every and any operator of a motor vehicle;

(g) Litigable Apprechension Cases refer to violations cited in the Temporary Operator's Permit ("TOP"), City Traffic Citation Tickets (CTCTs), or apprehension report which are contested by the respondent, and the determination of which cannot be resolved without a hearing in which all the parties, namely: the complainant, the respondent and/or the intervenor, or their respective authorized representatives or counsels, shall be allowed to present their evidences, under oath;

(h) Motor Vehicle shall refer to any vehicle propelled by any power other than muscular power using the public highways, but except road rollers, trolley cars, street sweepers, sprinklers, lawn mowers, bulldozers, graders, fork-lifts, amphibian trucks, and cranes if not used on public highways, vehicles which run only on rails or tracks, and tractors, trailers and traction engines of all kinds used exclusively for agricultural purposes. Private cars, private jeeps, motorcycles, mini-buses, passenger vans, buses, tricycles, light motorcycles, tricycles, tractors, electric motorcycles, and electric cars shall be considered as vehicles;

(i) Operator shall mean the holder or grantee of a valid and subsisting Certificate of Public Conveyance (CPC) issued by the Land Transportation Franchising and Regulatory Board (LTFRB);

(j) Reckless Driving shall refer to the act of operating a motor vehicle on any road without reasonable caution considering the width, traffic, grade, crossing, curvatures, visibility, and other conditions of the highway and the condition of the vehicle, its equipment, or parts thereon, or so as to endanger the property or the safety or rights of any person or so as to cause excessive or unreasonable damage to the highway, as it was defined under Article V, Section 48 of RA No. 4136;

(k) Registered Owner shall refer to the person in whose name the motor vehicle is registered, as indicated on the Certificate of Registration issued by the LTO.

The owner of a government-owned motor vehicle is the head of the office or the chief of the Bureau to which the said motor vehicle belongs;

(l) Road shall refer to any public highway, thoroughfare, alley, boulevard, and the like within the jurisdiction of the City of Davao;

(m) Speed Enforcement Camera shall refer to camera-based speed enforcement systems that may be installed on highways or used by law enforcers to determine the speed of motor vehicles for purposes of detecting violations of speed limits;

(n) Speed Gun shall refer to a speed measuring device using Radar Detection and Ranging (RADAR) or Light Detection and Ranging (LIDAR) technologies for the purpose of determining the speed of motor vehicles;

(o) Subdivision Road shall refer to streets, avenues or alleys and the like, within subdivisions;

(p) Temporary Operator's Permit (TOP) shall refer to the ticket issued by the LTO and its deputized personnel;

(q) Traffic Law Enforcement Officer refers to any members of LTO and its deputized agents, CTTMO authorized personnel and its agents, Traffic Enforcement Unit - Davao City Police Office (TEU-DCPO), Highway Patrol Group - Philippine National Police (HPG-PNP) who were tasked to ensure the safety of road users, to maintain the orderly traffic flow and reduce congestion status of all minor and major thoroughfares of this City by strictly enforcing the national and local traffic laws that will ensure a safer road for the motorists and pedestrians as well.

SECTION 6. OVERSPEEDING AND RECKLESS DRIVING. —

(a) No person shall drive a motor vehicle on any road in this City at a rate of speed greater than that permitted by this Ordinance or by other laws.

(b) No person shall drive a motor vehicle at a speed that is not appropriate for the width, traffic, grades, crossing, curvatures, visibility, or other conditions of the road, as to endanger the safety of road users and their property.

(c) No person shall drive a motor vehicle at a speed greater than that which will permit the vehicle to stop within the assured clear distance ahead, in order to prevent a road crash.

For purposes of this Ordinance, reckless driving is defined as exceeding the maximum permitted speed by more than 30 kilometers per hour (kph), regardless of any injuries or property damage that may have resulted.

SECTION 7. SPEED LIMITS. —

(a) Subject to the provisions of the preceding paragraph and unless otherwise provided herein, the following speed limits shall apply to the roads and motor vehicles identified below:

(i) Designated open roads (major roads) within Davao City as specified herein shall be 80 kilometers per hour (kph) on the following road segments:

1. From Lacson up to Marilag District-Buda Boundary;

2. From Carabao Monument Waypark up to Binugao-Sta Cruz Boundary;

3. From Bunawan Crossing up to Lasang-Paranabo Boundary.

Designated open roads (major roads) within Davao City as specified herein shall be 60 kilometers per hour (kph) on the following road segments:

1. From Ulas Crossing up to Lacson;

2. From Ulas Crossing up to Carabao Monument Waypark;

3. From Crossing Panacan to Bunawan Crossing; and

4. Within the Davao City Coastal Road

All feeder/minor roads branching out of those major roads shall be

30 kph in high residential areas and 60 kph in low-density residential areas;

(i) Designated through streets of local and national roads whether primary or secondary roads within Davao City shall be 40 kilometers per hour (kph);

(ii) City streets within the City of Davao, unless otherwise provided hereunder, shall be 30 kilometers per hour (kph);

(iii) Designated interior roads circumscribed by through streets shall be 30 kilometers per hour (kph);

(iv) All public subdivision roads and barangay roads shall be 20 kilometers per hour (kph); and

(v) All school zones shall be 20 kilometers per hour (kph) for all motor vehicles

(b) The following speed limits shall apply to the roads and motor vehicles identified below, and other similar motor vehicles:

Road Classification	**Name of Highway, Thoroughfare, Street, or Road**	**Maximum Allowable Speeds (kph)**
Light Vehicles and Motorcycles	Trucks, Buses, Passenger Vans	
Davao-Bukidnon Road (from Lacson to Marilog- Buda Boundary)	80	50
Daang Maharilka (from Crossing Bunawan to Lasang)/Panabo Boundary	80	50
Davao-Cotabato Road (Carabao Monument Waypark to Binugao-Sta Cruz Boundary)	80	50
Daang Maharilka (from crossing Panacan to crossing Bunawan Crossing)	60	50
Davao-Cotabato Road (from Ulas to Carabao Monument Waypark)	60	50

Davao-Bukidnon Road (from Ulas to Lacson)	60	50
CP Garcia Highway (from Matina Pangi to entrance/exit of Laz Terrazas) - uphill	60	50
CP Garcia Highway (from Matina Pangi to entrance/exit of Laz Terrazas) - downhill	60	40
CP Garcia Highway (from entrance/exit of Laz Terrazas to Crossing Maa)	60	40
CP Garcia Highway (from crossing Maa to crossing Milan)	60	50
Cabartian-Bunawan Road (from corner Malagamot Road to corner Villarosa St.-Bunawan)	60	50
Gatungan-Callawa Road	60	50
Magtuod-Tugbok Road	60	50
Tacunan Road, Matina Biao, Biao Escuela, Biao Guanga, Biao Joaquin, New Valencia, New Carmen and Waan Areas	60	50
Malagamot Road	60	50
Mudiang Road	60	50
Eliong Road	60	50
Manambulan Taqakpan Road	60	50
Bayabas Eden Road	60	50
Daang Maharikta (JP Laurel Avenue) - (from Panacan Crossing to cor. Corner Sta. Ana Avenue)	40	30
Cabartian-Bunawan Road (from corner Malagamot Road to corner Milan)	40	30
Daang Maharikta (Corner Roxas Avenue to Pichon Rotundas)	40	30
Davao-Cotabato Road (from Ulas to corner Pichon St.)	40	30
Quirino Ave. (from corner Pichon to corner JP Laurel Ave)	40	30
Quiapo Ave. (from corner Davao-Cotabato Rd.(MacArthur Highway to Bolton Bridge)	40	30
Quezon Blvd. (from Bolton Br. to Magaysay Park)	40	30
Maa Road	40	30
Bypass Maa	40	30
Ramon Magaysay Avenue	40	30
Sta. Ana Avenue	40	30
GE Torres St.	40	30
Lapu-Lapu St.	40	30
Leon Garcia	40	30

R, Castillo St.	40	30
Mamay Road	40	30
Cabaguo Ave.	40	30
Dacudaao Ave.	40	30
F. Torres St.	40	30
Loyola St.	40	30
Circumferential Road (Sarenas)	40	30
Gahol Dr.	40	30
Bacaca Road	40	30
Buhangin-Lapanday Road	40	30
Manuel Garcia Road (Mandug Rd.) (from crossing Milan to Proper Mandug)	40	30
Cabatlanan-Bunawan Road (from corner Milan to corner Malagamot)	40	30
Mandug Road	40	30
Catalunan Grande Road	40	30
Libby Road	40	30
Bago Aplaya Road	40	30
Matina Pangi Road	40	30
Matina Aplaya Road	40	30
Ecowest Drive	40	30
Shrine Hills Road	40	30
Daang Maharlika (Corner Roxas Avenue to Pichon Rotunda)	30	30
Interior roads bounded by J.P. Laurel Avenue, R. Castillo St., Lapu-Lapu St., and Sta. Ana Ave. except those designated as through streets and public subdivision roads	30	30
Interior roads bounded by Pichon St., Quiinto Ave., Sta. Ana Ave., and Quezon Boulevard except those designated as through streets and public subdivision roads	30	30

City Streets

Inner roads bounded by Quirino Ave., J.P Laurel Ave., and Bacaca Road except those designated as through streets and public subdivision roads	**30**	**30**	
Inner roads bounded by Bacaca Rd., J.P. Laurel Ave., Mamay Road and CP Garcia Highway except those designated as through streets and public subdivision roads	30	30	

Inner roads bounded by Mamay Road, CP Garcia Highway, J.P Laurel Ave., Daang Maharlika Highway, except those designated as through streets and public subdivision roads	30	30	
Crowded Sts.	All barangay roads with high density residential	20	20
	Along School Zones and High Traffic Generator Establishments like malls, churches, hospitals etc.	20	20

(c) Any vehicle traversing streets of convergence such as intersections, schools, hospitals, public markets, and checkpoints shall slow down:

(i) For those with a speed limit of 50 kph and below, at least 50 meters before reaching the said areas;

(ii) For those with a speed limit of 60 kph, at least 80 meters before reaching the said areas;

(iii) For those with a speed limit of 80 kph, at least 130 to 150 meters before reaching the said areas.

SECTION 8. TEMPORARY SPEED LIMIT. — There shall be imposed a Temporary Speed Limit provided by the City Government of Davao through the CTTMO in coordination with the Department of Public Works and Highways - Davao City (DPWH), the City Engineer's Office (CEO), or the Public Safety and Security Office (PSSO), as the case may be, in view of their Traffic Management Plan, which shall be lowered to the fixed maximum speed limit provided in this Ordinance for the following instances:

(a) During ongoing constructions, provided that the area is properly marked with information of its project duration;

(b) During big events as determined by PSSO, an event where the number of people attending could strain the planning and response resources of the community where the event will be held, as necessary to undertake strict security measures while taking into consideration the traffic management plan of the said event.

SECTION 9. EXEMPTIONS. — The speed limits prescribed under Section 7 of this Ordinance shall not apply to drivers, operators or registered owners in the following circumstances, provided that these exemptions shall not be construed to allow unnecessary fast driving or endanger the life, health, or property of any person:

(a) The driver of a motor vehicle carrying a physician or health worker who is responding to an emergency call;

(b) The driver of a hospital ambulance or emergency vehicle on the way to and from the place of a road crash or other emergency;

(c) Any driver bringing a wounded, injured, or sick person for emergency treatment to a hospital, clinic or any other similar place;

(d) The driver of a motor vehicle belonging to the Armed Forces of the Philippines (AFP), the Philippine National Police (PNP), the Philippine Drug Enforcement Agency (PDEA), the National Bureau of Investigation (NBI), the Bureau of Jail Management and Penology (BMP), and other law enforcement agencies while performing their official functions or operations;

(e) Any driver, whether a public officer or private person, who is responding to an emergency or in pursuit of a fleeing criminal and/or who is trying to overtake or apprehend a violator of traffic laws;

(f) The driver officially operating a motor vehicle of any fire department emergency response agency, 911, the City Disaster Risk Reduction and Management Office (CRRMO), while responding to an emergency;

(g) Recognized Volunteer Groups (RVGs) or Accredited Community Disaster Volunteer (ACDV's) by the City Government of Davao, responding to emergencies such as natural calamities or man-made disasters;

(h) Diplomats, dignitaries, national or local Very Important Person (VIP) Officials, and the like, in coordination with the City Mayor's Office (CMO), the Public Safety and Security Office (PSSO), TEU-DCPO, and AFP.

SECTION 10. LEAD AND SUPPORT AGENCIES. — The following, in the discharge of their official functions, shall serve as the lead agencies in implementing this Ordinance:

(a) CTTMO; and

(b) TEU — DCPO.

Furthermore, the following are hereby enjoined to give their full support, assistance, and cooperation in the course of the implementation of this Ordinance:

(a) LTO;

(b) HPG — PNP;

(c) LTRFB;

(d) DPWH; and

(e) Department of Transportation (DOTR).

SECTION 11. RESPONSIBILITIES OF THE CTTMO. — AND TRAFFIC MANAGEMENT OFFICE (CTTMQ)

- In cooperation with the City Engineer's Office (CEO) and DPWH - Davao City, the CTTMQ shall, in addition to other functions under other Ordinances, orders, or policy issuances, have the following functions:

SECTION 11.1. SPEED LIMIT AND OTHER ROAD SAFETY SIGNS

- The CTTMQ is hereby directed to install appropriate traffic signs indicating the speed limits on all affected highways, streets, and roads within the City. All signs installed pursuant to this Section must comply with the technical specifications under the current Road Signs and Pavement Markings Manual of the Highway Safety Design Standards issued by DPWH.
- For National Roads within the City, the CTTMQ may, subject to the approval of DPWH, cause the installation of speed limit signs or request DPWH to install said speed limit signs.
- In areas where no speed limit signs are installed, the default speed limit provided in Section 7(a) of this Ordinance shall be observed.

SECTION 11.2. ENFORCEMENT, ENGINEERING, AND EDUCATION

- (a) Cause the visible installation and maintenance of speed limit signs, and pavement markings, in accordance with the speed limits provided in Sections 7 and 8;
- (b) When entering a new speed limit zone, the sign should have an end sign, then followed by a start sign accompanied with a speed limit pavement marking for the new speed zone;

SPEED LIMIT

LIGHT VEHICLES

MAX

40

KPH

TRUCKS / BUSES

MAX

30

KPH

END

LIGHT VEHICLES

40

TRUCKS / BUSES

30

(c) Speed Limit Signs should have a repeater sign visibly installed and maintained every 300-400 meters, the repeater sign is slightly smaller than normal speed limit sign;

LIGHT VEHICLES

MAX

40

KPH

TRUCKS/BUSES

MAX

30

KPH

(d) Signages for the proper implementation of the fast and slow lanes should also be installed;

(e) When entering checkpoints, school zones, hospital zones, and other areas of convergence, reducing speed limit signages should be installed, taking into consideration the distance prescribed under Section 7 (c) of this Ordinance, and all other areas where the reduction of speed is warranted;

(f) Speed Limit Pavement Marking sign is recommended to be visibly installed and maintained when entering a new speed limit zone along national highways (optional);

(g) Speed limit information sign should be visibly installed and maintained at boundaries and in terminals;

sample:

YOU ARE ENTERING A

SPEED LIMIT ZONE

80 60 40 30 20

STRIC COMPLIANCE

IS ADVISED

Davao City Ordinance No. 0900-00, Series of

(h) Assign traffic law enforcement officers for the enforcement of speed limits within the City of Davao;

(i) Enforce this Ordinance, through CTTMO authorized personnel and its agents, by apprehending offending drivers / motor vehicles, issuing CTTCFs, and resolving protests, without prejudice to the authority of the LTD to enforce traffic rules and regulations, including reckless driving;

(j) Coordinate with the DCPO-TEU, barangay officials, and other Law Enforcement Agencies in relation to traffic rules and road safety to harmonize deployment and field operations within the City; and

(k) To train CTTMO authorized personnel and its agents on the use of speed guns, speed enforcement cameras, and other speed enforcement strategies, in coordination with the LTD.

SECTION 11.3 DATA COLLECTION, PLANNING, AND COORDINATION -

(a) Collect road crash data from police reports and other data sources such as hospitals, barangay reports, etc., and shall monitor and evaluate the impact of this Ordinance on the number of road crashes, road crash fatalities and injuries, and traffic flow. CTTMO shall likewise collect data on the number of apprehensions, fines collected, cases resolved, and other relevant data pertaining to the enforcement of this Ordinance.

(b) Collect road crash data, including road crash fatalities, injuries, and other relevant information, to be submitted quarterly to the Sangguniang Panlungsod of Davao and the CMO for the purpose of developing road safety policies and to the DPWH and DOTR.

(c) Road crash data shall be collected and encoded by the CTTMO using the QOTR Data for the Road Incident Visualization Evaluation and Reporting (ORIVER) system. Other enforcement data and results of monitoring and evaluation shall be maintained in a database by the CTTMO and submitted to the Sangguniang Panlungsod and the CMO on or before 30 January of the succeeding year, and annually thereafter, for purposes of the development of road safety policies.

(d) Submit a speed management plan to the CMO annually, identifying "traffic blackspots" or roads with high road crash incidents, and proposing preventive measures to address the same, and proposing appropriate speed limits for roads within the City to improve road safety;

(e) Submit an annual budget plan in accordance with Section 16, for the implementation and enforcement of speed limits, which shall include, among others, the installation and maintenance of speed limit signs and pavement markings, procurement and maintenance of speed guns and speed enforcement cameras, construction of speed management infrastructure, and other speed calming engineering treatments, and information and education campaigns;

(f) Coordinate with the CEO and DPWH-Davao on the construction of infrastructure and other engineering treatments designed to manage or calm speed;

(g) Ensure connectivity with the current LTO Information Systems to allow for uploading of the details of drivers who failed to pay their fines and other penalties. In cases where the connection with the LTO Information System has not yet been established, the CTTMO shall submit a quarterly report to the LTO-Davao containing the relevant information;

(h) All CTCTs shall be submitted by the apprehending traffic law enforcement officer to the CTTMO, within 24 hours from the time of issuance thereof.

SECTION 11.4. PUBLIC INFORMATION CAMPAIGN AND OTHER TASKS —

(a) Conduct public information campaigns on speed limit enforcement and road safety, in proper coordination with the City Information Office (CIO);

(b) Perform other tasks as may be assigned by the Mayor for the purpose of implementing this Ordinance.

SECTION 12. ENFORCEMENT PROCEDURE. — The enforcement of speed limits within the City of Davao shall be strictly enforced by the CTTMO authorized personnel and its agents, and the same shall not in any way affect the enforcement procedures and operations strictly observed by LTO or any of its deputized agents.

SECTION 12.1. VIOLATION OF SECTION 6(a): DETECTED USING SPEED GUNS OR MANNECED SPEED ENFORCEMENT CAMERAS:

(A) Upon detection of a violation of Section 6(a) using speed guns or manneced speed enforcement cameras, the law enforcement officer shall flag the offending driver or motor vehicle down.

(B) Upon apprehension, the traffic law enforcement officer shall inform the offending driver of the violation and show him the speed detected by the speed gun. The traffic law enforcement officer shall require the presentation of the driver's license of the offending driver and motor vehicle certificate of registration and official receipt of registration.

(C) The traffic law enforcement officer shall indicate the following details on the CTCT:

i. name and address of the driver;

ii. driver's license number, plate number, date, time, and place of issuance;

iii. driver's birth date;

iv. name of motor vehicle owner;

v. certificate of registration number;

vi. speed registered on the speed gun;

vii. speed limit on the road where the violation was committed; and

viii. name of the apprehending officer.

(d) For purposes of protest and adjudication, and upon the violator's request, the law enforcement officer shall provide a photo of the speed registered in the speed gun, speed limit on the road, driver and vehicle, to the violator within seven (7) days from the date of apprehension. The CTTMO shall store the aforementioned data for a period of thirty (30) days from the date of apprehension. If the violator fails to request the said data from the CTTMO, the violator is deemed to have waived his or her right to protest.

(e) The CTTMO shall inform the offending driver that failure to settle the fines within the period provided in this Ordinance shall prompt the CTTMO to submit the details of the offending driver and/or registered owner to the LTO, for the purpose of penalizing the offender by holding the application and/or issuance of the violator's driver's license and the registration of the motor vehicle involved until all penalties have been addressed, as provided under this ordinance.

(f) The registered owner shall be presumed to be the driver of the motor vehicle unless such registered owner can prove that the motor vehicle was driven by another person. In case of a protest based on the identity of the driver, the registered owner shall have the duty to provide under oath the name of the driver of the motor vehicle, his known address, and other details as may be required by the CTTMO. Except in cases where the protest is based on stolen vehicles, no protest based on the identity of the driver shall be allowed unless the alleged driver at the time of violation is identified.

(g) The apprehension procedure provided in the Comprehensive Transport and Traffic Code of Davao City, as amended, shall be applicable if the traffic law enforcement officer is an authorized personnel or agents of CTTMO.

SECTION 12.2 APPREHENSION FOR SPEEDING UNDER SECTION 6 (b) AND (c)

(a) Where a driver is found to have violated Section 6(b) and (c) of this Ordinance, the offense shall be considered "reckless driving."

(b) The traffic law enforcement officer shall flag down the driver and inform him of the violation and the circumstances surrounding the violation, require the presentation of the driver's license of the apprehended driver and motor vehicle certificate of registration and official receipt of registration.

(c) The traffic law enforcement officer shall indicate the following details on the CTT:

i. name and address of the driver;

ii. driver's license number, plate number, date, time and place of issuance;

iii. driver's birth date;

iv. name of motor vehicle owner;

v. certificate of registration number;

vi. speed registered on the speed gun;

vii. conditions of the road or surrounding circumstance;

viii. photo of the speed registered in the speed gun, conditions of the road or surrounding circumstances, driver and vehicle for documentary purposes; and

ix. name of the apprehending officer.

(d) The driver shall have seven (7) days within which to settle the fine or to file a protest in accordance with Section 12.

(e) The CTTMO shall inform the offending driver that failure to settle the fines within the period provided in this Ordinance shall prompt the CTTMO to submit the details of the offending driver and/or registered owner to the LTO, for the purpose of penalizing the offender by holding the application and/or issuance of the violator's license and the registration of the motor vehicle involved until all penalties have been addressed, as provided under this Ordinance.

(f) The registered owner shall be presumed to be the driver of the motor vehicle unless such registered owner can prove that the motor vehicle was driven by another person. In case of a protest based on the identity of the driver, the registered owner shall have the duty to provide under oath the name of the driver of the motor vehicle, his known address, and other details as may be required by the CTTMO. Except in cases where the protest is based on stolen vehicles, no protest based on the identity of the driver shall be allowed unless the alleged driver at the time of violation is identified.

(g) The apprehension procedure provided in the Comprehensive Transport and Traffic Code of Davao City, as amended, shall be applicable if the traffic law enforcement officer is an authorized personnel or agents of CTTMO.

SECTION 13. PROTEST ADJUDICATION. — The following procedures for protest adjudication shall be strictly observed for purposes of this Ordinance.

SECTION 13.1. CTTMO PROTEST ADJUDICATION — All protests of those apprehended by CTTMO authorized personnel and its agents under this Ordinance shall be lodged with the CTTMO. The CTTMO shall conduct an investigation and hearing, and shall have the authority to issue summonses to the traffic law enforcement officers and registered owners of motor vehicles, and receive evidence in relation to the protest.

In case of dismissal of the protest, the driver or registered owner shall have seven (7) days within which to settle the fine indicated in the decision. The driver or registered owner shall be issued a clearance by the CTTMO, indicating that the driver/registered owner has been cleared of the violation, and canceling the CTCT.

SECTION 13.2. LTO PROTEST ADJUDICATION — All protests, both litigable and non-litigable apprehension cases of those apprehended by LTO enforcers shall be subjected to the current rules on protest adjudication of LTO.

SECTION 14. ADMINISTRATIVE FINES. — Violation of this Ordinance shall subject the violator to the fines as enumerated under the following paragraphs.

OFFENSE	FINE
First Offense	Php 1,000.00
Second Offense	Php 2,000.00
Third and Subsequent Offense	Php 5,000.00

In addition to the fines provided in this Section, a fine of P1,500 for the first and second offense, or P2,500 for the third and subsequent offense, shall be imposed where:

1. The speed of the apprehended vehicle exceeds the posted speed limit by more than 30 kph; or

2. The motor vehicle is driven in a reckless manner.

Moreover, an additional five hundred pesos (Php 500.00) fine shall be imposed upon the violator who fails to settle the fines provided in the CTCTM in accordance with Section 13 of this Ordinance within the period of seven (7) calendar days.

Provided, That the total amount of the fines to be imposed upon the violator per violation does not exceed the amount of Five Thousand Pesos (Php 5,000.00).

SECTION 15. FAILURE TO SETTLE ADMINISTRATIVE FINES. — ADMINISTRATIVE FINES - In the event that the violator fails to settle the imposed fines or files a Protest within the period of seven (7) calendar days,

the CTCTMO shall forward the details of the offending driver and/or registered owner to the LTO within the period of thirty (30) calendar days. The LTO shall hold in abeyance the application and/or issuance of the violator's driver's license and the registration of the motor vehicle involved in the violation.

For this purpose, the LTO, CTCTMO, and other concerned agencies shall coordinate in holding in abeyance the issuance of any pertinent documents or clearances until the entire fine is settled and the late charges paid.

The LTO shall collect the fines according to their schedule of fees for speeding and reckless driving, but shall forward to the City Government of Davao the amount of Five Hundred Pesos (Php 500.00) per fine charged and collected, as the City's share in the fine for the late processing and payment of the offender.

SECTION 16. APPROPRIATION. — The City Government of Davao, through the City Mayor's Office and the CTCTMO, as the responsible agencies, shall appropriate from the General Fund an amount deemed proper for the implementation and enforcement of this Ordinance in its annual budget plan.

They shall also, in accordance with RA No. 9184 (Government Procurement Reform Act), procure the speed guns, speed cameras, CTCTs and systems that may be used to enforce the same, ensure the training of law enforcement officers, produce, install, and maintain speed limit signs within the city roads, conduct information campaigns, and secure all other matters that may be necessary for the proper implementation thereof.

All fines collected pursuant to this Ordinance shall be earmarked for the implementation of Road Safety Ordinances and Policies in addition to the budget to be appropriated from the General Fund for subsequent years, which shall not be less than the amount of the prior year's appropriation.

SECTION 17. REVIEW OF SPEED LIMITS. — — The CTTMO shall conduct a review of the speed limits provided in this Ordinance every three (3) years to ensure that the speed limits are appropriate for the actual road conditions, and submit the same to the Sangguniang Panlungsod, for amendment.

SECTION 18. INFORMATION, EDUCATION, AND COMMUNICATION CAMPAIGN. — EDUCATION, AND COMMUNICATION CAMPAIGN. — The CTTMO in coordination with the City Information Office (CIO) shall conduct a continuing information, education, and communication campaign on the speed limits within the City of Davao, the impact of the implementation of this Ordinance, and other speed enforcement activities.

SECTION 19. REPEALING CLAUSE. — — Any Ordinance, local issuances or rules inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

SECTION 20. SEPARABILITY CLAUSE. — — If for any reason any Section of this Ordinance is declared unconstitutional or invalid, the other sections or provisions hereof which are not affected thereby, shall continue to be in full force and effect.

SECTION 21. EFFECTIVITY. — — This Ordinance shall take effect fifteen (15) days upon approval, posting and publication in a newspaper of local circulation.

ENACTED, on the 1st day of August, 2023, by an unanimous vote of all the Members of the Sanggunian Panlungsod, there being a quorum.

CERTIFIED CORRECT:

CHARITO N. SANTOS

Secretary to the Sanggunian Panlungsod

(City Government Department Head II)

ATTESTED:

J. MELCHIOR B. QUITAIN JR.

Nye Mayor

Presiding Officer

crs/ry

APPROVED: AUG 29 2023, 2023

SEBASTIAN Z. DUTERTE

City Mayor

ATTESTED:

ATTY. FRANCIS MARK H. LAYOG

Acting City Administrator

AN ORDINANCE PROVIDING FOR THE SPEED LIMITS FOR ALL KINDS OF MOTOR VEHICLES WITHIN THE TERRITORIAL JURISDICTION OF DAVAO CITY, PROVIDING PENALTIES THEREOF, COLLECTION OF ROAD CRASH DATA, AND APPROPRIATING FUNDS FOR THIS PURPOSE